

Form B: Fiscal Sponsorship Agreement

Project ID

Applicant Full Name

Application Date

Mailing Address

Phone Number

Primary Email Address

Legal Entity Name

(Grantee)

Legal Entity Type

Project, Program or Initiative Name

FISCAL SPONSORSHIP GRANT AGREEMENT

This Fiscal Sponsorship Grant Agreement (the "Agreement") is made by and between Coach House Solutions Group, an Illinois not-for-profit corporation recognized as exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code (the "Sponsor"), and [Legal Name of Sponsored Entity or Individual] the "Grantee".

This Agreement establishes a grantor–grantee fiscal sponsorship relationship (commonly referred to as Model C fiscal sponsorship) and sets forth the terms under which Sponsor agrees to receive and administer charitable contributions in support of the Project (as defined below).

RECITALS

WHEREAS, Grantee has submitted an application for fiscal sponsorship describing a charitable project or program (the "Project") whose purposes are consistent with the Sponsor’s charitable mission and with Section 501(c)(3) of the Internal Revenue Code;

WHEREAS, Sponsor has reviewed the application and determined, in its sole discretion, that the Project furthers Sponsor’s exempt purposes and that Grantee has the capacity to carry out the Project in a professional and responsible manner;

WHEREAS, upon approval, Sponsor agrees to establish a restricted fund to receive charitable contributions designated for the Project and to make grants from such fund to Grantee in furtherance of the Project,

subject to the terms of this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants herein, the parties agree as follows:

1. TERM

This Agreement becomes effective on the date of the last signature below (the "Effective Date") and shall continue unless and until terminated in accordance with Section 13 of this Agreement.

2. PROJECT ACTIVITIES AND RESPONSIBILITIES

Sponsor shall not be responsible for the day-to-day management or operation of the Project, including but not limited to programmatic activities, fundraising events, contract negotiations, accounts payable or receivable, insurance, or employment matters.

No individual working on the Project shall be deemed an employee, agent, or contractor of Sponsor. Grantee assumes full responsibility for all liabilities incurred in connection with the Project and agrees to indemnify Sponsor as set forth herein.

3. LEGAL STATUS OF GRANTEE

If Grantee is a legal entity, Grantee shall provide Sponsor with governing documents, Employer Identification Number, and such other documentation as Sponsor may reasonably request. If Grantee is an individual, such individual assumes full personal responsibility for all obligations under this Agreement.

Grantee agrees to comply with all fiscal sponsorship policies and procedures adopted by Sponsor, as amended from time to time with written notice.

4. RESTRICTED FUND AND GRANTS

Sponsor shall establish and maintain a restricted fund (the "Restricted Fund") to receive contributions designated for the Project. All contributions deposited into the Restricted Fund shall be considered charitable assets of Sponsor for tax and accounting purposes.

Sponsor shall exercise variance power and retain full discretion and control over the administration of the Restricted Fund, including the authority to make grants from the fund to Grantee in amounts and at times determined by Sponsor in its sole discretion, consistent with donor restrictions and applicable law.

Sponsor shall make reasonable efforts to review and approve grant disbursement requests in a timely manner. Once approved, grant funds shall be disbursed to Grantee within five (5) to business days, provided all required documentation has been submitted. Sponsor agrees not to unreasonably withhold or delay disbursement of funds designated for the Project.

All grants made to Grantee are charitable grants, not payments for services.

5. REQUEST, USE AND SPENDING OF GRANT FUNDS

Grantee shall use grant funds solely for the purposes of the Project as approved by Sponsor and in a manner consistent with Section 501(c)(3). Funds released to Grantee shall be expended in accordance with the approved Project budget and timeline. If funds are intended for longer-term use, Grantee may

request and Sponsor shall not unreasonably withhold approval for extended expenditure periods consistent with Project needs.

For grants exceeding \$25,000 where the anticipated expenditure period extends beyond ninety (90) days, Sponsor and Grantee agree that funds will generally be disbursed in tranches aligned with the Project's expected cash flow needs. Such tranches are intended to fund approximately ninety (90) days of projected expenditures, unless otherwise approved in writing by Sponsor.

Regarding budget and spending authority, Grantee may operate in accordance with an approved Project budget. Individual expenses that fall within the approved budget categories shall not require separate prior approval, provided such expenses are consistent with the charitable purposes of the Project.

6. FUNDRAISING AND SOLICITATION

Grantee and its representatives may solicit donations on behalf of Sponsor for the Project. Sponsor shall review and approve fundraising materials, provided that such approval shall not be unreasonably withheld or delayed. Sponsor and Grantee may agree upon pre-approved language and templates that Grantee may use for ongoing fundraising efforts without requiring repeated approval.

Grantee shall not make binding commitments to donors or grantors on behalf of Sponsor.

7. ADMINISTRATIVE FEE

To support fiscal administration and compliance, Sponsor shall retain an administrative fee equal to 7% of all cash contributions. The administrative fee percentage shall remain fixed and shall not be increased without the prior written consent of Grantee. Sponsor shall also retain any interest earned on funds held in the Restricted Fund.

8. REPORTING AND RECORDKEEPING

Grantee shall submit written reports on a quarterly basis and a final report upon termination of this Agreement, detailing Project activities, expenditures, and compliance with this Agreement. Grantee shall maintain accurate financial records and make such records available for review or audit upon reasonable request.

9. PROHIBITED ACTIVITIES

Grant funds may not be used for partisan political activity, private benefit, or attempts to influence legislation unless expressly authorized in writing and permitted by law. Any use of funds that jeopardizes Sponsor's tax-exempt status constitutes a material breach of this Agreement.

10. INTELLECTUAL PROPERTY

All intellectual property created by Grantee in connection with the Project shall remain the property of Grantee. Sponsor retains the right to use Project materials for archival, reporting, and promotional purposes consistent with its charitable mission.

11. INSURANCE

Sponsor may require Grantee to obtain and maintain appropriate insurance coverage at Grantee's expense.

Failure to maintain required coverage may result in termination.

12. INDEMNIFICATION

Grantee agrees to indemnify and hold harmless Sponsor and its directors, officers, employees, and agents from any claims arising out of Grantee’s gross negligence, willful misconduct, or material breach of this Agreement. Both parties agree to maintain appropriate insurance coverage consistent with the scope of their respective responsibilities under this Agreement.

13. TERMINATION

This Agreement may be terminated by either party upon written notice, or by Sponsor immediately upon material breach or determination that the Project no longer furthers Sponsor’s charitable purposes. Upon termination, remaining funds shall be disposed of in accordance with applicable charitable trust and tax laws.

Except in cases of legal or regulatory violations, Sponsor shall provide written notice of any concerns and a reasonable opportunity for Grantee to cure such issues prior to termination.

14. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois.

15. ENTIRE AGREEMENT

This Agreement, together with the approved application and incorporated policies, constitutes the entire agreement between the parties and may be amended only with written notice as provided herein.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives.

GRANTEE

Legal Entity Name

Authorized Signature

Printed Name

Title

Date

SPONSOR

Legal Entity Name
Coach House Solutions Group

Authorized Signature

Printed Name

Title

Date